

Plaintiffs' motion for a new trial is denied.

Motions to Tax Costs

The parties each move to tax costs.

The parties agree that the Court has discretion to determine the prevailing party since none of the circumstances described in Code of Civil Procedure Sec. 1032(a)(4) apply.

“Under the circumstances presented by this case, the prevailing party determination is properly a matter for the trial court's discretion. (See, e.g., *Lincoln v. Schurgin* (1995) 39 Cal.App.4th 100, 104–105 [45 Cal. Rptr. 2d 874] [when plaintiff wins net monetary recovery but defendant prevails in its cross-action for declaratory relief, case presents circumstance not otherwise specified; in that case, determination of prevailing party is matter within court's discretion].)” *Wolf v. Walt Disney Pictures & Television* (2008) 162 Cal.App.4th 1107, 1142.

In addition, the court may “apportion [costs] as appropriate.” *Id.* at 1143.

As plaintiffs note, neither party is challenging a *type* or *category* of costs. The principal questions here are which party has prevailed and whether costs should be apportioned. There is also a separate question regarding the costs of the court reporter at trial.

Plaintiffs acknowledge in their “Memorandum of Points and Authorities Supporting Motion to Tax Costs” (filed June 5, 2024) that defendant prevailed on virtually all the issues tried. Plaintiffs' success was limited to an award of \$2,564.01 for the cost of the fencing. They claim there was a “mixed result” as to the right of dogs and children being allowed off the easements. And they assert they prevailed on the issue regarding the removal of the security cameras from the property. They also successfully resisted defendant's request that they remove the barbed wire along the driveway for Parcel D-1.

As to the \$2,564.01, the issue tried was *defendant's* request for a determination that she did not owe the full amount of the \$11,477.15 which plaintiffs told her she must pay. Thus, defendant prevailed as to approximately 80% of her request. (Plaintiffs had a cause of action for damages, but that was not included in the trial. As noted below, that is now dismissed.)

Nor did defendant claim that she was entitled to have children or dogs be present on plaintiffs' property other than on the easements. Plaintiffs cannot credibly claim they prevailed on that. But even were it otherwise, it would be the smallest of victories.

The Court permitted plaintiffs to maintain the security cameras. To that extent, they prevailed. But that is not the full extent of the issue. Defendant was principally concerned

with her privacy and that of her invitees. Since the Court ruled that plaintiffs are not permitted to retain photographs of lawful use of the easements, defendant prevailed to that extent.

Moreover, plaintiffs brought seven additional causes of action. After trial, they dismissed all seven claims. As to those, defendant is the prevailing party.

In these situations,

“the trial court in its discretion determines the prevailing party, comparing the relief sought with that obtained, along with the parties' litigation objectives as disclosed by their pleadings, briefs, and other such sources.” (*On-Line Power, Inc. v. Mazur* (2007) 149 Cal.App.4th 1079, 1087 [57 Cal. Rptr. 3d 698].) Thus, the trial court determines whether the party succeeded at a practical level by realizing its litigation objectives (*Wohlgemuth v. Caterpillar Inc.* (2012) 207 Cal.App.4th 1252, 1264 [144 Cal. Rptr. 3d 545]) and the action yielded the primary relief sought in the case (*City of Santa Maria v. Adam* (2016) 248 Cal.App.4th 504, 516 [203 Cal. Rptr. 3d 758]).” *Friends of Spring Street v. Nevada City* (2019) 33 Cal.App.5th 1092, 1104.

Here, it is clear, at a practical level, that defendant obtained almost all the relief she sought. She realized virtually all her litigation objections. As a practical matter, there were only very limited litigation objectives as to which she failed to obtain complete relief, viz., she did not obtain all the declaratory relief she sought regarding the cost of the fencing (although she obtained most of what she sought); she did not obtain the declaratory relief she sought with regard to the fencing along the driveway at Parcel D-1; and she did not obtain all of the relief she sought with respect to the security cameras (although she preserved her privacy). Thus, viewing the case in its entirety, the Court considers defendant to be the prevailing party, as a practical matter.

The Court has considered whether costs might be apportioned to account for the very limited success plaintiffs had in the litigation. But nothing in the papers submitted for this hearing begin to enable the Court to determine what, if any, of plaintiffs' costs relate to the litigation of those limited issues. Although there is considerable detail attached to plaintiffs' bill of costs, it is not broken down in a way that apportions costs to the very few issues on which they prevailed. Given that, the Court denies plaintiffs' motion to tax costs (with one exception) and grants defendant's motion to tax costs.

That exception regards court reporter costs. Plaintiffs assert there was an agreement to share equally the cost of the court reporter at trial. Defendant agrees, but Mr. Tener's declaration says it was his “understanding” that the costs would be subject to reallocation following trial. Neither party has submitted a written agreement regarding this matter. Unless there was an express oral agreement that agreed-upon shared costs would be subject to reallocation, then the Court will enforce the parties' agreement to share court reporter trial costs.